Calder / Nordhafen | Supply terms, price records and support programmes

ARCHIVE FILE | Commercial and operational record extract | All entities and identifiers are fictional.

Master supply agreement — executed 8 December 2022

Term	Executed text or commercial particulars
Parties	Calder Flow Systems Ltd (seller and pump producer), and Nordhafen Process Systems GmbH (buyer / importer of record).
Delivery	DAP Hamburg facility, Incoterms 2020. Calder arranges carriage and insurance; Nordhafen arranges import customs clearance.
Origin records	Seller supplies reasonable origin-support documents and communicates material corrections to known supplier preference information.
Additional duty indemnity	Seller indemnifies direct additional customs duties attributable to materially incorrect origin information it supplied, subject to causation and mitigation.
Written claim timing	Claim notice within 24 months after Nordhafen actually becomes aware of an official assessment.
Governing law / forum	English law; London arbitration for supply-agreement disputes.

Executed commercial pricing schedules

Delivery	Catalogue EUR/u	Pre-order allowance EUR/u	Carriage and cover EUR/u
A / 2023	24,500	500	2,000
B / 2023	25,700	700	2,200
C / 2024	28,000	1,000	2,400
D / 2025	30,200	1,200	2,600
E / 2025	32,400	1,400	2,900
F / 2026	34,800	1,800	3,100

The pricing schedules, executed before shipment, identify volume allowances for the relevant pumping equipment. Road carriage and cover were invoiced as separate delivered-price lines. The broker’s declared entry values reproduce those delivered invoice totals, although the carrier’s route sheets do not separately price every journey leg before and after first entry into the customs territory of the Union.

Customer-support agreement NPS-MKT-23 — 12 January 2024

Nordhafen undertook three regional demonstrations and operator training events for Calder's distributor programme, with events scheduled independently of the dates on which the B pumps were sold and imported. Calder agreed EUR 56,000 for completion, referenced commercially as EUR 350 per pump in the B supply programme. Nordhafen invoiced its services on NPS-SV-38; attendance and demonstration records DEMO-12 to DEMO-14 were signed by end-user sites.

Calder issued customer-account credit CS-B-24 on 5 February 2024 and the parties set off EUR 56,000 against the outstanding CF-INV-23482 receivable. The consolidated sales ledger carried the set-off in the "sales allowances" account, while Nordhafen separately recognised revenue from demonstration services.

Commissioning programme NPS-COMM-25 — 18 September 2025

Nordhafen agreed to provide site commissioning and operator training at specified industrial locations. A schedule priced this programme at EUR 165,000, allocated in the service ledger as EUR 750 against each of 220 pumps in consignment E. Calder issued CS-E-26 on 30 June 2026 following the site acceptance records FAC-21/25; Nordhafen's NPS-ENG-126 service invoice and the Calder account were settled by receivables set-off on 6 July 2026.

The Calder management P&L subsequently reported customer contribution for consignments B and E net of those support costs. The executed goods-price appendix was not re-signed at the time of either service reconciliation. Finance and sales did not agree on whether the net management figure was suitable for external customs-origin reporting.

Pricing queries in the 2026 audit

1 August 2026 — Calder finance: The invoice and A/R balances alone do not distinguish a contractual reduction of the pump price from later set-offs against separate obligations. Finance referred compliance to signed schedules, purchase orders, completion documents and the original supplier material records.